

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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Date Purchased:

AMY KALNA,

Index No.

Plaintiff designates

New York County

as the place of trial.

The basis of venue is

Location of occurrence.

CPLR §504(3).

Plaintiff,

-against-

SUMMONS

THE CITY OF NEW YORK;

Police Officer GERONIMO TYRELL;

JOHN AND JANE DOES #1- #8, all being
members of the New York City Police Department and, upon
information and belief, assigned to the First Precinct
and also all being employees of the City of New York; and

JOHN DOE #9 and JANE DOE #10 each being
employed by the City of New York as an Emergency Services
Technician (and operators of Ambulance FY401);

Each and all of whom caused and participated in the
false arrest, and unlawful seizure and confinement
of the Claimant that began on March 25, 2016 at
211 North End Avenue, New York, NY.

Defendants.

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To the above-named Defendant(s):

You are hereby summoned to answer the complaint in this action and to
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the
service of this summons, exclusive of the day of service (or within 30 days after the

service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, N.Y.
March 17, 2017

Defendants' addresses:

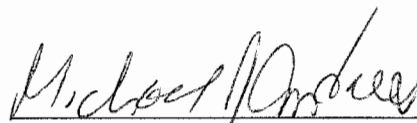
CITY OF NEW YORK
100 Church Street
New York, NY

GERONIMO TYRELL
NYPD First Precinct
16 Ericsson Place
New York, NY 10013

JOHN and JANE DOES #1 - #8,
All being Police Officers of the NYPD
c/o 1 Police Plaza
New York, NY 10007

JOHN DOE #9 and
JANE DOE #10
c/o New York City Fire Dept.
9 Metrotech Center
Brooklyn, NY 11201

By:


MICHAEL J. ANDREWS

MICHAEL J. ANDREWS, P.C.
Attorneys for Plaintiff(s)
Post Office Address
60 East 42nd Street
47th Floor
New York, N.Y. 10165
(212) 557-7767

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
AMY KALNA,

Plaintiff,

- against -

VERIFIED
COMPLAINT

Index No.:

THE CITY OF NEW YORK;
Police Officer GERONIMO TYRELL,

JOHN AND JANE DOES #1- #8, all being
members of the New York City Police Department and, upon
information and belief, assigned to the First Precinct
and also all being employees of the City of New York; and

JOHN DOE #9 and JANE DOE #10 each being
employed by the City of New York as an Emergency Services
Technician (and operators of Ambulance FY401);

Each and all of whom caused and participated in the
false arrest, and unlawful seizure and confinement
of the Claimant that began on March 25, 2016 at
211 North End Avenue, New York, NY.

Defendants.
-----X

Plaintiff complaining of the defendants by her attorneys, MICHAEL J. ANDREWS, P.C.,
hereby alleges upon information and belief as follows:

THE PARTIES

1. That at all times hereinafter mentioned, the plaintiff was and still is an adult resident of the State of New York.
2. That at all times hereinafter mentioned, defendant, CITY OF NEW YORK was and still is a municipal corporation duly organized under the laws of the State of New York.
3. That at all times hereinafter mentioned, defendant GERONIMO TYRELL ("TYRELL") was and still is an employee of the defendant CITY OF NEW YORK.

4. That at all times hereinafter mentioned, the defendant TYRELL was and is a law enforcement officer employed by the defendant CITY OF NEW YORK, he was and is assigned to the New York City Police Department; he was and is assigned shield number 13283, and, at all relevant times was assigned to the First Precinct.

5. That at all times hereinafter mentioned, defendant TYRELL was acting within the scope of his employment, in the furtherance of his duties with defendant CITY OF NEW YORK, and under the color of law. Defendant TYRELL is sued in his individual capacity.

6. That at all times hereinafter mentioned, the defendants JOHN and JANE DOEs #1 - #10 (hereinafter collectively the "DOE Defendants") were and are adult residents of the State of New York.

7. That at all times hereinafter mentioned, each and every one of the DOE defendants was and is an employee of the defendant CITY OF NEW YORK.

8. That at all times hereinafter mentioned, the DOE defendants were and are employees of the defendant CITY OF NEW YORK.

9. That at all times hereinafter mentioned, the DOE defendants were acting within the scope of their respective employment, in the furtherance of their duties with defendant CITY OF NEW YORK, and under the color of law. The DOE defendants are each sued in their individual capacities.

10. That at all times hereinafter mentioned, each and every one of the Doe defendants #1 - #8 was and is a law enforcement officer employed by the defendant CITY OF NEW YORK and was and remains assigned to the New York City Police Department.

11. Upon information and belief, on March 25, 2016, one of the Doe defendants # 1 - #8 held the rank of Sergeant with the New York City Police Department.

12. That at all times hereinafter mentioned, defendants John Doe #9 and Jane Doe #10 were employed by the defendant City of New York as ambulance operators, and/or as emergency services technicians and were and remain assigned to the New York City Fire Department ("FDNY").

13. Upon information and belief, on March 25, 2016 at the time of the occurrence and events described herein, Doe Defendants # 9 - #10 were operating an ambulance bearing number FY401.

14. That at all times hereinafter mentioned, all of the Doe defendants were acting within the scope of their respective employment and in the furtherance of his or her duties with defendant CITY OF NEW YORK. Each and every one of the Doe defendants is sued in his or her individual capacity.

15. That at all times hereinafter mentioned, all of the Doe defendants were acting in concert with one another and also in concert with defendant TYRELL.

16. That at all times hereinafter mentioned, the DOE defendants were acting under color of law, to wit: the laws of the State of New York and City of New York.

NOTICE OF CLAIM PROVISIONS

17. On June 16, 2016, the plaintiff duly served and filed a Notice of Claim with the Comptroller of the City of New York; this action was commenced within one year and ninety days from the accrual of the action; and that at least thirty days have elapsed since the service of the Notice of Claim and an adjustment or payment thereof has been neglected or refused.

AS AND FOR A FIRST CAUSE OF ACTION FOR AN UNLAWFUL AND UNREASONABLE SEARCH AND SEIZURE

18. On Friday, March 25, 2016 at approximately 10:15 a.m., the defendants CITY OF NEW YORK, defendant TYRELL, and the Doe defendants, and their agents, servants, and/or their employees unlawfully entered the plaintiff's home and they then seized and detained the plaintiff against

plaintiff's will, without plaintiff's consent - all without a validly issued warrant, and without other legal justification or excuse.

19. Defendant TYRELL and the Doe defendants all acted pursuant to, and in accordance with, an official policy, custom, and/or practice of the City of New York.

20. All of the defendants intended their actions.

21. The plaintiff was aware and conscious of the entry, search, seizure, detention and confinement.

22. The entry into the plaintiff's home was not privileged and the subsequent seizure, detention and confinement of plaintiff also was not privileged.

23. There was no probable cause to enter the plaintiff's home or to seize, detain, or confine plaintiff.

24. The plaintiff did not consent to the entry into her home.

25. The plaintiff did not consent to the seizure, detention or confinement of herself.

26. The defendants were aware that the foregoing entry, seizure, detention, and confinement were unlawful.

27. The defendants failed to intercede to terminate the unlawful actions and constitutional violations occurring in their presence.

28. As a result of the actions (and the failures of the defendants to act), the plaintiff was confined, against her will and without lawful authority, until Wednesday, March 30, 2016.

29. As a result of the foregoing, the plaintiff was deprived of her liberty, subjected to scorn, ridicule, and embarrassment, suffered from shock and personal injuries, and other damages.

30. The acts of the aforesaid defendants violated the common law of the State of New York. The plaintiff seeks relief against said defendant pursuant to common law.

31. The acts of the aforesaid defendants violated the rights granted to plaintiff pursuant to the Fourth and Fourteenth Amendments to the United States Constitution. As such, plaintiff seeks relief pursuant to 42 U.S.C. §1983.

32. **ARTICLE 16 IS INAPPLICABLE TO INSTANT ACTION**

33. The provisions of Article 16 to the CPLR of the State of New York do not apply to the instant action.

34. The defendants acted with intent.

WHEREFORE, plaintiff demands judgment against the defendants as follows:

- (i) Compensatory damages in an amount of money exceeding the monetary jurisdiction of all lower courts which would otherwise have jurisdiction over this action;
- (ii) Punitive damages, against the individual defendants, in an amount that is just, reasonable, and fair;
- (iii) Statutory attorneys' fees and the interest, costs, and the disbursements of this action;
- (iv) Such other relief as is fair, just, or equitable.

Dated: New York, NY
March 17, 2017

BY:


MICHAEL J. ANDREWS
MICHAEL J. ANDREWS, P.C.
Attorneys For Plaintiff
OFFICE & P.O. ADDRESS
60 East 42nd Street, Suite 4700
New York, N.Y. 10165
(212) 557-7767

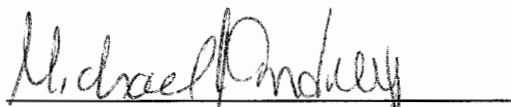
KALNA v. CITY OF NEW YORK et al

VERIFICATION

STATE OF NEW YORK,
COUNTY OF NEW YORK, SS:

MICHAEL J. ANDREWS, an attorney duly admitted to the practice of law in the State of New York, swears that this VERIFIED COMPLAINT is true to my knowledge except as to the matters alleged to be on information and belief; as to those matters, I believe them to be true.

This verification is made pursuant to C.P.L.R. §3020(d)(3).


MICHAEL J. ANDREWS